

INDEPENDENT CONTRACTOR SERVICES AGREEMENT

This Independent Contractor Services Agreement ("**Agreement**") is made and entered into by and between:

Applied Fund Solutions, LLC a limited liability company organized and existing under the laws of the State of Delaware, United States of America, with office address at 45 Rockefeller Plaza, Suite 2000, New York, New York 10111 hereinafter referred to as "**COMPANY**",

and

Sintayehu Ayele, Ethiopian, of legal age, with address at Woreda 09, Yeka Sub-City, Addis Ababa, Ethiopia, hereinafter referred to as the "**CONTRACTOR**".

RECITALS

WHEREAS, CONTRACTOR has extensive experience and skills in the areas of accounting, controllership and treasury management and has offered his/her services to COMPANY;

WHEREAS, COMPANY requires services in the above-mentioned areas and wishes to contract the services of CONTRACTOR based on the latter's representation of his/her experience and skills;

NOW, THEREFORE, in consideration of the mutual covenants set forth herein, COMPANY and CONTRACTOR (each, a "Party" and collectively, the "Parties"), agree as follows:

1. SERVICES

- 1.1 While this Agreement is existing, CONTRACTOR shall provide the following services to COMPANY (hereinafter collectively called the "Services"):

Various accounting services as determined at time of engagement.

- 1.2 CONTRACTOR does not have a fixed work schedule, but is required to provide the Services to COMPANY as may be required under the terms hereunder. Without prejudice to the Parties' right to terminate this Agreement as set forth in Clause 4 below, in the event CONTRACTOR is not performing the Services diligently and to the complete satisfaction of COMPANY as per the terms herein, COMPANY may in its sole discretion provide CONTRACTOR with written notice of its concerns and/or the results CONTRACTOR has failed to provide. If such written notice is provided, CONTRACTOR shall remedy the deficiencies within three (3) days.
- 1.3 CONTRACTOR is solely responsible for procuring all the resources required for the performance of the Services. When agreed by the Parties, COMPANY may reimburse CONTRACTOR for certain expenses and costs that the Parties mutually agree are specific to the Services being provided to COMPANY by CONTRACTOR.

- 1.4 CONTRACTOR is not authorized to enter into any agreement, make any representation or warranty, or incur any liability or obligation on behalf of COMPANY without COMPANY's prior written consent.

2. INDEPENDENT CONTRACTOR

- 2.1 CONTRACTOR acknowledges and agrees that his/her relationship with COMPANY is one of an independent contractor and nothing in this Agreement or otherwise shall be deemed to constitute CONTRACTOR as an employee, representative or agent of COMPANY, entitle him/her to any of the benefits provided by COMPANY to its employees, or authorize him/her to obligate COMPANY in any manner or to any extent not expressly provided by the terms hereof. This Agreement does not create any employment relationship between CONTRACTOR and COMPANY. CONTRACTOR shall not mislead any person in respect of his/her status as an independent contractor (and not as an employee, representative or agent) of COMPANY.
- 2.2 CONTRACTOR warrants and undertakes the following:
- a) CONTRACTOR shall personally perform the Services in accordance with Philippine laws and regulations; and, any problems that may arise in connection therewith shall be the sole responsibility of CONTRACTOR.
 - b) CONTRACTOR shall perform the Services under his/her own name, on his//her own account and under his/her own responsibility. She is solely responsible for the control and supervision of the manner and means by which the Services are performed. The manner and means by which the Services are performed are subject to CONTRACTOR's discretion, which discretion must be exercised consistent with the goal of completing the Services on schedule and in accordance with the terms of this Agreement and the objectives set by COMPANY.
 - c) CONTRACTOR shall hold any property of COMPANY for the account of COMPANY and, on request of COMPANY, shall surrender or return such property to COMPANY. If the property that CONTRACTOR holds is a tangible property, the same shall be surrendered or returned in as good condition as received, ordinary wear and tear excepted. All records or papers of any kind relating to COMPANY's business, including all copies thereof, shall be the property of COMPANY, and shall be surrendered to COMPANY on demand or upon termination of this Agreement.
 - d) CONTRACTOR shall maintain himself/herself in good standing as a qualified and competent provider of services, financially capable of acting as an independent service provider, shall secure and maintain all licenses and permits, whether necessary or desirable, and shall comply with all laws and regulations required for the provision of the Services.

- e) CONTRACTOR shall not at any time in any manner whatsoever, directly or indirectly, disclose to any natural or juridical person any information of any kind relating to this Agreement, including the service fees payable under this Agreement or the circumstances leading to the execution of this Agreement.
- f) CONTRACTOR confirms that his/her acceptance of this Agreement will not conflict with, violate or constitute a breach of any employment or other agreement to which she was, has been or is a party to, and she is not required to obtain the consent of or to give notice to any person, whether natural or juridical, for entering into this Agreement. She also confirms that she is not subject to any restrictions that would prevent him/her from entering into this Agreement and performing the Services pursuant therein.
- g) In the performance of his/her Services for COMPANY, CONTRACTOR shall not knowingly use or otherwise disclose any confidential, business and proprietary or trade secret information obtained as a result of any prior employment or other relationship, unless specifically authorized to do so by someone with the appropriate authority from the applicable place of former employment or relationship. This provision should be regarded as COMPANY's instruction to CONTRACTOR not to use or disclose any confidential, business and proprietary or trade secret information obtained as a result of any prior employment or other relationship of CONTRACTOR with any person.

3. SERVICE FEES

- 3.1 CONTRACTOR's fees for the Services are the following: \$1,250.00 payable through check or bank deposit, upon receipt of invoice acceptable to COMPANY.

COMPANY has no obligation to accept any Services or deliverables by CONTRACTOR, or to compensate CONTRACTOR for any Services or deliverables, unless the Services or deliverables are in accordance with COMPANY's standards and have been approved by COMPANY.

- 3.2 All taxes due hereunder or by virtue of the rendering of Services shall be borne exclusively by CONTRACTOR.
- 3.3 Except as otherwise agreed, no other payment shall be made to or due CONTRACTOR under this Agreement for any reason, including the reimbursement of expenses, except if such expenses were previously agreed in writing by both Parties.
- 3.4 CONTRACTOR shall provide COMPANY with invoices that meet all governmental and COMPANY requirements. She shall electronically send a copy of the invoice for Services performed to appliedfundsolutions@bill.com and copy dn@appliedfundsolutions.com on monthly basis. COMPANY shall pay CONTRACTOR within 10 days after COMPANY's receipt of CONTRACTOR's invoice, provided there are no issues involving such invoice,

net of all applicable withholding and other taxes, which are for the account of CONTRACTOR.

4. TERMINATION

- 4.1 This Agreement shall be effective on Monday, October 20, 2025. CONTRACTOR shall provide the Services to COMPANY starting the said date until either Party terminates this Agreement. Either Party may terminate this Agreement (a) without further liability immediately for breach of this Agreement, or (b) absent breach of this Agreement, upon providing the other Party thirty (30) days prior written notice.
- 4.2 If termination occurs, except for the consideration for the Services properly performed by and other payments that shall be provided to CONTRACTOR per the terms of this Agreement and except for other liability of the Parties that may emerge here from, no other payment or monetary obligation shall exist between the Parties. CONTRACTOR acknowledges that there is no entitlement to any form of severance, notice, payment in lieu, termination pay or the like at common law, under contract, or pursuant to statute.
- 4.3 This Agreement shall automatically terminate upon CONTRACTOR's death. In such event, COMPANY shall be obligated to pay CONTRACTOR's estate or beneficiaries only the accrued but unpaid fees due as of the date of death.

5. CONFIDENTIALITY

- 5.1 "Confidential Information" is any information that COMPANY considers to be confidential or any information that may be used by third parties to the detriment of COMPANY or the owner of the Confidential Information. It includes, but is not limited to, trade secrets, information concerning the organization, business, finances, databases or affairs of COMPANY or its customers, all know how, technical information, reports, interpretations, forecasts, records, corporate and business plans and accounts, business methods, financial details, projections and targets, remuneration and personnel details (including any service agreement), information concerning COMPANY's information systems and protocols, planned products, planned services, marketing surveys and research reports, market share and pricing statistics, budgets, fee levels, computer passwords, the contents of any databases, software specifications and functions, designs, drawings, testing procedures, materials and production specifications, commissions, commission charges, pricing policies and all information about research and development, COMPANY's suppliers' and customers' names addresses telephone facsimile or other contact numbers and contact names, the nature of their business operations, their requirements for services and products supplied by COMPANY and all confidential aspects of their relationship with COMPANY.
- 5.2 CONTRACTOR shall not during the term of this Agreement (otherwise than in the proper performance of his/her duties) or at any time thereafter use, disclose or communicate to any person, and shall use his/her best endeavors to prevent the use, publication or disclosure, of any Confidential Information. This clause shall continue to apply after the

termination or end of this Agreement without limit in point of time but shall cease to apply to information that may come into the public domain otherwise than through unauthorized disclosure by CONTRACTOR. Upon the termination of this Agreement or upon demand of COMPANY, CONTRACTOR shall return to COMPANY all Confidential Information in his/her custody, possession or control.

CONTRACTOR shall not at any time during the term of this Agreement (otherwise than in the proper performance of his/her duties) or at any time thereafter copy or reproduce in any form or by or on any media or device or allow others access to or to copy or reproduce any documents, disks, memory devices, notebooks, tapes or other medium on which Confidential Information may be recorded or referred to.

- 5.3 In the event CONTRACTOR is required by law, regulation or court order to disclose any Confidential Information, she shall promptly notify COMPANY in writing of such requirement and assist COMPANY or the appropriate person to obtain a protective order or other appropriate remedy from the proper authority. If CONTRACTOR, COMPANY, or the appropriate person fails to obtain a protective order or other appropriate remedy from the proper authority in a timely manner, CONTRACTOR shall furnish only that portion of the Confidential Information that is legally required to be disclosed and shall exercise all reasonable efforts to obtain reliable assurances that confidential treatment will be accorded the information disclosed.
- 5.4 The obligations under this clause shall survive the termination of this Agreement.

6. INTELLECTUAL PROPERTY

- 6.1 In consideration of the payments made to CONTRACTOR, CONTRACTOR agrees that any patentable discovery or patent which may arise from any of the Services that CONTRACTOR provides to COMPANY, is the sole property of COMPANY, and CONTRACTOR hereby expressly waives in favor of COMPANY any right to ownership of any patent or knowhow which may be developed or able to be developed arising directly or indirectly as a result of his/her services, as well as any compensation fee, or royalty of any kind with regard to same.
- 6.2 CONTRACTOR acknowledges that she shall have no right to ownership of any inventions, improvements, modifications, mask works, discoveries, developments, ideas or conceptions, works of authorship, trademark, patent, registration, knowhow or other intellectual property rights ("Intellectual Property") arising from the topics on which she consults in relation to COMPANY's business or resulting from his/her performance of any Services for the COMPANY, and hereby assigns to COMPANY any and all rights to any trademark, patent, registration or license to use same to which he might otherwise be entitled.
- 6.3 CONTRACTOR agrees that copyrights to, and any physical or electronic embodiment of, any written materials prepared by him/her for the COMPANY whether as a compilation,

instructional text, as a contribution to a collective work or as a supplementary work, shall be considered as work made for hire and as such shall be the property of COMPANY.

6.4 CONTRACTOR agrees to promptly cooperate with COMPANY or its designee both during and after the term of this Agreement, with respect to the procurement of patents, copyrights or other forms of protection for the establishment and maintenance of COMPANY's or its designee's rights and interests in said Intellectual Property, and to assist in any proper way, including signing all papers, keeping of records and giving of evidence and testimony which COMPANY may deem necessary or desirable, for the purpose of vesting COMPANY or its designees with such rights or perfecting or enforcing such rights, the expense thereof to be borne by COMPANY. If COMPANY is unable for any reason, after reasonable effort, to secure CONTRACTOR's signature on any document needed in connection with the actions specified above, CONTRACTOR hereby irrevocably designates and appoints COMPANY and its duly authorized officers and agents as his/her agent and attorney-in-fact, to act for and on his/her behalf to execute, verify, and file any such documents and to conduct all other lawfully permitted acts to further the purposes of this Clause 6 with the same legal force and effect as if CONTRACTOR executed the same. CONTRACTOR hereby waives and quitclaims to COMPANY any and all claims, of any nature whatsoever, which CONTRACTOR now or may hereafter have for infringement of any proprietary right assigned to COMPANY.

6.5 The obligations under this clause shall survive the termination of this Agreement.

7. PERSONAL INFORMATION

7.1 The Parties understand that privacy of information is important. COMPANY does not sell or otherwise share personally identifiable information except as provided below.

7.2 CONTRACTOR acknowledges that COMPANY holds personal information relating to its contractors in its capacity as client and in connection with conducting business. Such information are confidential and retained by COMPANY only for as long as necessary for the fulfillment of these purposes, as well as for the establishment, exercise or defense of legal claims, for other legitimate purposes, or as provided by law.

7.3 COMPANY may share personally identifiable personal information about CONTRACTOR with persons that work for or with COMPANY to pay fees to CONTRACTOR or to administer COMPANY's records. Such companies are required to keep the personally identifiable personal information provided to them confidential and to use the information only to provide the services or fulfill the responsibilities they have been engaged to perform. COMPANY may also disclose any personally identifiable personal information about its contractors as a consequence of a sale of the assets or any shares of COMPANY, or in preparation for any of these events, and pursuant to laws, regulations, and court orders or subpoenas that may be received by COMPANY.

7.4 CONTRACTOR hereby acknowledges that COMPANY has informed him/her of COMPANY's use of CONTRACTOR's personal information in accordance with the

relevant laws. CONTRACTOR hereby expressly authorizes COMPANY to collect, process and transfer personal data about CONTRACTOR that COMPANY deems necessary in order to effectively and efficiently administer this Agreement and conduct its business.

- 7.5 CONTRACTOR also understands and agrees that COMPANY has the right to monitor, record, access and use in any way it deems fit all communications, documents, information, telephone conversations, voice messages, electronic messages, or any part of information or message (whether in the form of data, texts, images, speech or any other form) ("Communications") transferred via and/or stored on COMPANY's network infrastructure and telecommunications system ("IT system"). CONTRACTOR acknowledges that she has no expectation of privacy with regard to all these Communications and when using COMPANY's IT system.

8. CONFLICT OF INTEREST

- 8.1 COMPANY acknowledges that CONTRACTOR is a third party provider and that subject to the restrictions provided herein, such as his/her obligations of confidentiality and adequate performance of the Services, CONTRACTOR is free to provide services to other persons not related to COMPANY. Likewise, COMPANY may utilize the expertise, advice and skills of other consultants, contractors and service providers.
- 8.2 While this Agreement is existing, CONTRACTOR shall not, directly or indirectly, engage in any employment, activity or business that would conflict with his/her performance of the Services.
- 8.3 The above restriction is reasonable and necessary for the protection of the legitimate interests of COMPANY and relevant parties, and where any aspect of the restriction shall be held to be void or ineffective for any reason but would be held to be valid and effective if part of it were deleted, that restriction shall apply with such deletions as may be necessary to make it valid and effective.
- 8.3 CONTRACTOR acknowledges and confirms that damages alone may be inadequate to protect against a breach by him/her of the above commitments, and COMPANY or the relevant party may, in the event of such a breach, be entitled to remedies of injunctive relief, specific performance or other equitable relief in the COMPANY's favor.

9. INDEMNIFICATION

- 9.1 CONTRACTOR agrees to hold COMPANY, its related companies, shareholders, directors, officers, employees, representatives and agents entirely free and harmless from any liability, cause of action, or claim, which may be filed by any natural or juridical person by reason of his/her performance of the Services or under any provision of law or regulation that is now in effect or hereafter may be enacted. She shall indemnify and reimburse COMPANY for all claims, damages, losses, expenses and other amounts, should

COMPANY be held liable for any liability, cause of action or claim in connection with his performance of the Services.

- 9.2 CONTRACTOR waives any rights to recover from COMPANY for any injuries that she may sustain while performing the Services.

10. MISCELLANEOUS

- 10.1. In the event an ambiguity or question of intent or interpretation arises, this Agreement shall be construed as if drafted jointly by the Parties and no presumption or burden of proof shall arise favoring or disfavoring any Party by virtue of the authorship of any of the provisions of this Agreement.
- 10.2 The Parties agree that if any of the provisions of this Agreement are deemed to be illegal, void or unenforceable, the illegality or unenforceability of such provision shall have no effect upon and shall not impair the enforceability of any other provision of this Agreement. While the restrictions and provisions in this Agreement are considered by the parties to be reasonable in all the circumstances, it is recognised that restrictions or provisions may fail for technical or other reasons unforeseen. Accordingly, it is agreed that if any such restrictions or provisions are adjudged invalid or unenforceable as going beyond what is reasonable in all the circumstances for the protection of COMPANY, but would be valid if part of the wording were deleted or the periods thereof reduced or the range of activities or area dealt with thereby reduced in scope, then such restriction or provision shall apply with such modifications as may be necessary to make it valid and effective.
- 10.3 No delay or failure on the part of any Party in exercising any of such Party's rights or remedies under this Agreement shall operate as a waiver of such rights or remedies. No waiver by any Party of any default, misrepresentation, or breach of warranty or covenant hereunder, whether intentional or not, shall be deemed to extend to any prior or subsequent default, misrepresentation, or breach of warranty or covenant hereunder or affect in any way any rights arising by virtue of any such prior or subsequent occurrence.
- 10.4 CONTRACTOR may not assign, in whole or in part, any of its rights and obligations under this Agreement without the prior written consent of COMPANY, and any attempt to carry out such transfer shall be considered void and ineffective. COMPANY may, however, assign or other transfer its rights, obligations, and interests in this Agreement without CONTRACTOR's consent.
- 10.5 This Agreement constitutes the entire and only agreement and understanding between the Parties hereto, and supersedes and cancels all previous agreements, negotiations and commitments relating to the subject matter hereof, including any agreements between the Parties as of the effective date of this Agreement, and may not be amended or modified, in any manner except by an instrument in writing signed by the Parties hereto.
- 10.6 Any dispute relating to the execution, implementation, interpretation, or violation of this Agreement shall be subject to consultation between the Parties. Any dispute shall be settled

as expeditiously as possible without interruption or disturbance of the orderly and efficient operations of COMPANY. To this end, amicable means of dispute settlement shall first be exhausted by both Parties.

- 10.7 This Agreement may be executed in any number of counterparts, each of which when executed and delivered shall constitute a duplicate original, but all the counterparts shall together constitute only one agreement.
- 10.8 The Parties acknowledge that both Parties have carefully read and understood all the provisions of this Agreement and have not relied on any statement, representation, or warranty made by the other Party or its agents other than those stated herein.

Applied Fund Solutions, LLC

By: *Daniel Nikci*

Name: Daniel Nikci
Position: Managing Partner

By:

Name: **Sintayehu Ayele**

ANNEX "A"

DATA PROCESSING ADDENDUM

1. **DEFINITIONS.** All terms that are used but not otherwise defined in this Addendum shall have the respective meanings given to them in the Independent Contractor Services Agreement ("Agreement") and the Data Privacy Act and laws in the United States of America. The following terms shall have the following meanings:

- (a) *"Data subject"* refers to an individual whose personal, sensitive personal, or privileged information is processed;
- (b) *"Personal data"* refers to all types of personal information;
- (c) *"Personal information"* refers to any information, whether recorded in a material form or not, from which the identity of an individual is apparent or can be reasonably and directly ascertained by the entity holding the information, or when put together with other information would directly and certainly identify an individual;
- (d) *"Personal information processor"* refers to any natural or juridical person or any other body to whom COMPANY may outsource or instruct the processing of personal data pertaining to a data subject;
- (e) *"Processing"* refers to any operation or any set of operations performed upon personal data including, but not limited to, the collection, recording, organization, storage, updating or modification, retrieval, consultation, use, consolidation, blocking, erasure or destruction of data. Processing may be performed through automated means, or manual processing, if the personal data are contained or are intended to be contained in a filing system;
- (f) *"Privileged information"* refers to any and all forms of data, which, under the Rules of Court and other pertinent laws constitute privileged communication;
- (g) *"Sensitive personal information"* refers to personal information:
 - 1. About an individual's race, ethnic origin, marital status, age, color, and religious, philosophical or political affiliations;
 - 2. About an individual's health, education, genetic or sexual life of a person, or to any proceeding for any offense committed or alleged to have been committed by such individual, the disposal of such proceedings, or the sentence of any court in such proceedings;
 - 3. Issued by government agencies peculiar to an individual which includes, but is not limited to, social security numbers, previous or current health records, licenses or its denials, suspension or revocation, and tax returns; and
 - 4. Specifically established by an executive order or an act of Congress to be kept classified.

2. **OBLIGATIONS OF THE COMPANY.** COMPANY agrees and warrants:

- (a) that the processing, including the transfer itself, of the personal data has been and will continue to be carried out in accordance with the Data Privacy Act and does not violate the relevant provisions thereof;
- (b) that it has instructed and throughout the duration of the Agreement will instruct CONTRACTOR to process the personal data transferred only on COMPANY's behalf and in accordance with the Data Privacy Act and this Addendum;
- (c) that it will ensure compliance with the requirements of the Data Privacy Act on the implementation of reasonable and appropriate security measures and on upholding the rights of data subjects;
- (d) that each of the data subjects has consented to the processing of his/her personal data by COMPANY and CONTRACTOR in accordance with the requirements of the Data Privacy Act.

3. **OBLIGATIONS OF CONTRACTOR.** In addition to CONTRACTOR's obligations under the Agreement, CONTRACTOR shall, effective immediately:

- (a) Process personal data only upon the documented instructions of COMPANY, including transfers of personal data to another country or an international organization, unless such transfer is authorized by law;
- (b) Ensure that an obligation of confidentiality is imposed on persons authorized to process the personal data;
- (c) Implement appropriate security measures and comply with the Data Privacy Act and other issuances of the National Privacy Commission;
- (d) Refrain from engaging another personal information processor without prior written instruction from COMPANY; provided, that any such arrangement shall ensure that the same obligations for data protection under this Addendum are implemented, taking into account the nature of the processing;
- (e) Assist COMPANY, by appropriate technical and organizational measures and to the extent possible, to fulfill the obligation to respond to requests by data subjects relative to the exercise of their rights;
- (f) Assist COMPANY in ensuring compliance with the Data Privacy Act, other relevant laws, and other issuances of the National Privacy Commission, taking into account the nature of processing and the information available to CONTRACTOR and its subcontractors or sub-processors, if any;

(g) At the choice of COMPANY, delete or return all personal data to COMPANY after the end of the provision of services relating to the processing; provided, that this includes deleting existing copies unless storage is authorized by the Data Privacy Act or another law;

(h) Make available to COMPANY all information necessary to demonstrate compliance with the obligations laid down in the Data Privacy Act, and allow for and contribute to audits, including inspections, conducted by COMPANY or another auditor mandated by the latter;

(i) Immediately inform COMPANY if, in its opinion, an instruction infringes the Data Privacy Act or any other issuance of the National Privacy Commission.

4. **CONFLICT.** The terms and conditions of the Agreement are hereby incorporated herein by reference. In the event of a conflict between the Agreement and this Addendum, the terms of this Addendum shall prevail with respect to the subject matter hereof.

Appendix 1
to the Data Processing Addendum

This Appendix forms part of the Addendum and must be completed by the parties.

Data subjects

The personal data transferred concern the following categories of data subjects (please specify):

Categories of data

The personal data transferred concern the following categories of data (please specify):

Sensitive personal information (if appropriate)

The personal data transferred concern the following sensitive personal information (please specify):

Processing operations

The personal data transferred will be subject to the following basic processing activities (please specify):

Geographic Location of Processing (please specify)

The personal data transferred will be processed by Contractor in the following country(ies) (please specify):

Philippines

Duration of Processing

The personal data transferred will be processed by Contractor for the following period (please specify):